

An Act

ENROLLED SENATE
BILL NO. 1618

By: Gollihare of the Senate

and

Harris and Moore of the
House

An Act relating to the criminal procedure; creating the Public Protection Act; amending 22 O.S. 2021, Section 1105.2, which relates to conditions of release; defining term; authorizing inclusion of certain information in public safety report; allowing courts to utilize public safety reports to determine release conditions; providing an exception; requiring submission of public safety report to defense counsel upon request; updating statutory language; updating statutory references; providing for noncodification; and providing an effective date.

SUBJECT: Pretrial release

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Public Protection Act".

SECTION 2. AMENDATORY 22 O.S. 2021, Section 1105.2, is amended to read as follows:

Section 1105.2. A. For the purposes of this section, "public safety report" means a risk assessment tool administered by a pretrial release program, as set forth in Section 1105.3 of this title, that predicts the likelihood of the risk of failure of a defendant to appear in court or risk of being arrested for a new crime during the pretrial period. The public safety report may:

1. State the requirements for setting bail under Section 1101 of this title;

2. Provide the name and date of birth of the defendant or, if impracticable, other identifying information, the cause number of the case, if available, and the offense for which the defendant was arrested;

3. Provide information on the eligibility of the defendant for a cash bond;

4. Provide information regarding the applicability of any required or discretionary bond conditions; and

5. Provide, in summary form, the criminal history of the defendant, including information regarding any:

a. previous misdemeanor or felony convictions,

b. pending charges,

c. previous sentences imposing a term of confinement,

d. previous convictions or pending charges for:

(1) offenses that are deemed violent crimes as defined in Section 571 of Title 57 of the Oklahoma Statutes, or

(2) offenses involving violence directed against a peace officer,

e. previous failures of the defendant to appear in court following release on bail,

- f. whether the defendant is currently on community supervision, parole, or mandatory supervision for an offense,
- g. whether the defendant is currently released on bail or participating in a pretrial release program and any conditions of that release or participation,
- h. outstanding warrants for the arrest of the defendant that have been entered into the National Crime Information Center database or the Oklahoma Law Enforcement Telecommunications System, and
- i. any current protective orders, as provided in the Protection from Domestic Abuse Act, for which the defendant is the subject.

B. Following an arrest for a misdemeanor or felony offense and before formal charges have been filed or an indictment made, the arrested person may have bail set by the court as provided in this ~~act~~ section; provided there are no provisions of law to the contrary.

~~B.~~ C. When formal charges or an indictment has been filed, bail shall be set according to law and the pretrial bond, if any, may be reaffirmed unless additional security is required. Every judicial district may, upon the order of the presiding judge for the district, establish a pretrial bail schedule for felony or misdemeanor offenses, except for traffic, wildlife, or water safety offenses included in subsections B, C and D of Section 1115.3 of ~~Title 22 of the Oklahoma Statutes~~ this title and those offenses specifically excluded herein. The bail schedule ~~established pursuant to the authority of this act~~ shall exclude any offense for which bail is not allowed by law. The bail schedule ~~authorized by this act~~ shall be set in accordance with guidelines relating to bail and shall be published and reviewed by March 1 of each year by the courts and district attorney of the judicial district.

~~C.~~ D. The court may utilize a public safety report to assist in determining release conditions for a defendant; provided, however, if a defendant has been charged with a violent crime, as defined in Section 571 of Title 57 of the Oklahoma Statutes, the court shall

utilize a public safety report to assist in determining release conditions for said defendant. The results of the public safety report shall not be used as the sole basis to grant or deny pretrial release. Upon request, results of the public safety report shall be provided to defense counsel and to counsel for the state.

E. The pretrial bail shall be set in a numerical dollar amount. If the person fails to appear in court as required the judge shall:

1. Rescind the bond and proceed to enter a judgment against the defendant for the dollar amount of the pretrial bail if no private bail was given at the time of release; provided, however, the court clerk shall follow the procedures as set forth in Section 1301 et seq. of Title 59 of the Oklahoma Statutes in collecting the forfeiture amount against the person who fails to appear in court; or

2. Rescind and forfeit the private bail if cash, property or surety bail was furnished at the time of release as set forth in Section 1301 et seq. of Title 59 of the Oklahoma Statutes.

~~D.~~ F. When a pretrial program exists in the judicial district where the person is being held, the judge court may utilize the services of the pretrial release program when ordering pretrial release, except when private bail has been furnished.

~~E.~~ G. Upon an order for pretrial release or release on bond, the person shall be released from custody without undue delay.

~~F.~~ H. The court may require the person to be placed on an electronic monitoring device as a condition of pretrial release.

~~G.~~ I. In instances where an electronic monitoring device has been ordered, the court may impose payment of a supervision fee. Payment of the fee, in whole or according to a court-ordered installment schedule, shall be a condition of pretrial release. The court clerk shall collect the supervision fees.

SECTION 3. This act shall become effective January 1, 2027.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____